Checklist

Before you serve the attached notice to your tenant(s), make sure you can answer **YES** to each of the following questions. If not, your notice may be invalid. If you file an application to the Landlord and Tenant Board based on an invalid notice, your application may be dismissed, and you will have to start over.

☐ **Did you name each tenant who is in possession of the rental unit?**

If there is more than one tenant in possession of the rental unit, fill in the names of all the tenants on the notice. Make sure you spell each tenant's name correctly. You must give **each tenant** a copy of this notice.

☐ **Did you fill in the complete address of the rental unit?**

Be sure that you have provided the full address – be sure to also identify the correct rental unit (for example Unit 202 or Basement) and provide the municipality and postal code.

☐ **Did you fill in the correct termination date?**

For monthly or yearly tenancies: the termination date must be:

A) **at least 60 days after you give the notice**, and
B) the **last day of the rental period** (e.g., the last day of the month if rent is due on the 1st day of each month).

For daily or weekly tenancies: the termination date must be **at least 28 days after you give the notice**, and it must be the **last day of the rental period** (e.g., the Sunday if rent is due each Monday).

For fixed-term leases: the termination date cannot be earlier than the last day of the lease term.

When counting the days, do not include the date you are giving the notice to the tenant.

If you are giving the notice to the tenant by mail or courier, you have to add extra days in calculating the termination date. Read the Instructions for this form to see how many days you have to add.

☐ **Did you choose the correct reason for ending the tenancy?**

This notice may be used for 5 different reasons. Check the box next to the reason(s) that apply.

☐ **Did you include enough detail to explain your reason(s)?**

Include dates, times, and facts to support the reason(s) you checked.

For reason 1 – list the date rent is due and the dates rent was paid for each rental period in issue. See the instructions for information about the legal test for this reason.

For reason 2 – identify the date and reason the tenant ceased to qualify for public or subsidized housing.

For reason 3 – identify the nature of the tenant’s employment with you and the date it ended.

For reason 4 – provide the date the condominium agreement of purchase and sale was entered into and the reason and date the agreement was terminated.

For reason 5 – identify the rehabilitative or therapeutic services provided, what the agreement set out and when the agreed period of tenancy ended.

☐ **Did you sign and date the notice?**

If you don't, the notice may be invalid.

You should remove this checklist before you give the tenant the notice.

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Notice to End your Tenancy at the End of the Term

N8

Disponible en français

To: (Tenant's name) include all tenant names	**From: (Landlord's name)**

Address of Rental Unit:

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province: ON	Postal Code:

This is a legal notice that could lead to you being evicted from your home.

The following information is from your landlord:

I am giving you this notice because I want to end your tenancy – I want you to move out of your rental unit by the following termination date: _____ (dd/mm/yyyy).

My Reason(s) for Ending your Tenancy

I have checked the box(es) next to my reason(s) for ending your tenancy.

☐ **Reason 1:** You have persistently failed to pay your rent in full on the date it became due.

☐ **Reason 2:** You no longer qualify to live in public or subsidized housing.

☐ **Reason 3:** I made the unit available to you as a condition of your employment and your employment has ended.

☐ **Reason 4:** Your tenancy was created in good faith as a result of an Agreement of Purchase and Sale for a proposed condominium unit and that agreement has been terminated.

☐ **Reason 5:** You are occupying the unit specifically to receive rehabilitative or therapeutic services and the period of tenancy to which you agreed has ended.

I can only give you a notice for this reason if no other tenant receiving rehabilitative and/or therapeutic services is allowed to live in the residential complex for more than 4 years.

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Details About the Reasons for this Notice

I have listed below the events that have led me to give you this notice, including the dates and specific details.

Important Information from the Landlord and Tenant Board

The termination date

For most types of tenancies (including monthly tenancies) the termination date must be at least **60 days** after the landlord gives you this notice. Also, the termination date must be the last day of a rental period. For example, if you pay rent on the first of each month, the termination date must be the last day of the month. If the tenancy is for a fixed term (for example, a lease for one year), the termination date cannot be earlier than the last date of the fixed term.

Exception: The termination date must be at least **28 days** after the landlord gives you this notice if your tenancy is daily or weekly (you pay rent daily or weekly). Also, the termination date must be the last day of the rental period. For example, if you pay rent weekly each Monday, the termination date must be a Sunday. If the tenancy is for a fixed term, the termination date cannot be earlier than the last date of the fixed term.

What if you disagree with the notice?

You do not have to move out if you disagree with what the landlord has put in this notice. However, the landlord can apply to the LTB to evict you. The LTB will schedule a hearing where you can explain why you disagree.

What if you move out?

If you move out of the rental unit by the termination date, your tenancy ends on that date.

What if the landlord applies to the LTB?

The landlord can apply to the LTB to evict you immediately after giving you this notice. If the landlord applies to the LTB to evict you, the LTB will schedule a hearing and send you a copy of the application and the *Notice of Hearing*. The *Notice of Hearing* sets out the date, time and location of the hearing. At the hearing, the landlord will have to prove the claims they made in this *Notice to End your Tenancy* and in the application and you can respond to the claims your landlord makes. If the LTB issues an order ending your tenancy and evicting you, the order will not require you to move out any earlier than the termination date included in this notice.

How to get more information

For more information about this notice or your rights, you can contact the Landlord and Tenant Board. You can reach the LTB by phone at **416-645-8080** or **1-888-332-3234**. You can visit the LTB's website at tribunalsontario.ca/ltb.

Signature

◯ Landlord ◯ Representative

First Name:	Last Name:	Phone Number:
Signature:	Date *(dd/mm/yyyy)*:	

Representative Information (if applicable)

First Name:	Last Name:	
LSO Number (if applicable):	Company Name (if applicable):	

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:
Municipality (City, Town, etc.):	Province:	Postal Code:
Email Address:	Phone Number:	

OFFICE USE ONLY:

File Number:

Delivery Method:

◯ In Person ◯ Mail ◯ Courier ◯ Email ◯ Service Ontario Center FL: